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General Comment

I have been involved in addressing the intersection of technology and the arts for nearly four decades, and have served as an advisor on intellectual property & trade to various Administrations as a member, and Vice-Chairman, of ITAC-15. It is no exaggeration to observe that this country, and its creative community in particular, has never faced as dire and existential threat as that posed by generative AI. It is a matter of absolute necessity that we stop the present misappropriation of creative works to train AI models, and ensure that uses of creative works to train AI only take place where & when AI companies have obtained the express consent of creators. Generative AI threatens to engulf the creative community and to drive original creation into extinction. While there might be some short term economic gains for AI companies, this would be a terrible loss for our country as a whole. We should not be sacrificing our future for minimal gains in the present, and we must reject the notion that the erosion of consent & free will is somehow mandated by the needs of a digital world. Indeed, what is the point of building a new digital world if it is hostile to the flourishing of humanity? If it eliminates the things that bring us joy? If it replaces the original with the derivative?

I urge you to reject calls for you to interfere with the rights of creators, and to instead redouble your efforts to ensure the effective protection of creators. To stand against the unauthorized exploitation of creators which, in the words of AI companies, masquerades as Progress & Innovation. That's not the kind of innovation that serves America's interests.